

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jesse Spieler-Jones	Team: Team # 5	CCRB Case #: 201201695	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 12/28/2011 1:40 PM	Location of Incident: § 87(2)(b) and § 87(2)(b) and the 83rd Precinct stationhouse		Precinct: 83	18 Mo. SOL 6/28/2013	EO SOL 6/28/2013
Date/Time CV Reported Mon, 02/06/2012 4:17 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 02/06/2012 4:17 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Kelvin Perez	04539	940565	083 PCT
2. SGT Nicholas Vandyke	02363	927819	083 PCT
3. POF Michele Herbst	16694	930338	083 PCT
4. POM Derek Almeida	25236	946426	083 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Dilson Abreu	23409	933590	083 PCT
2. POM Daniel Ludemann	10721	938892	083 PCT
3. POM Shane Maynard	26031	942149	083 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Derek Almeida	Abuse: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Derek Almeida stopped § 87(2)(b)	
B.POM Derek Almeida	Abuse: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Derek Almeida drew his gun.	
C.SGT Nicholas Vandyke	Abuse: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sgt. Nicholas Vandyke drew his gun.	
D.POF Michele Herbst	Abuse: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Michele Herbst drew her gun.	
E.SGT Nicholas Vandyke	Abuse: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sgt. Nicholas Vandyke supervised the stop of § 87(2)(b)	
F.POM Kelvin Perez	Abuse: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Kelvin Perez ordered the stop of § 87(2)(b)	
G.SGT Nicholas Vandyke	Abuse: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sgt. Nicholas Vandyke supervised the frisk of § 87(2)(b)	
H.SGT Nicholas Vandyke	Abuse: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sgt. Nicholas Vandyke supervised the search of § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
I.SGT Nicholas Vandyke	Abuse: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn and inside the 83rd Precinct stationhouse, Sgt. Nicholas Vandyke supervised the strip-search of § 87(2)(b)	
§ 87(2)(g), § 87(4-b)		

Case Summary

§ 87(2)(b) filed this complaint with the CCRB Call Processing System on February 6, 2012 (encl. 7A-B). On December 28, 2011, at about 1:40 p.m., § 87(2)(b) was stopped at the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn by PO Derek Almeida of the 83rd Precinct SNEU team. The stop was supervised by Sgt. Nicholas Van Dyke. § 87(2)(b) was ultimately arrested for § 87(2)(b). The following allegations resulted:

- **Allegation A – Abuse of Authority: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Kelvin Perez ordered the stop of § 87(2)(b)**
- **Allegation B – Abuse of Authority: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Derek Almeida stopped § 87(2)(b)**
- **Allegation C – Abuse of Authority: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sgt. Nicholas Van Dyke supervised the stop of § 87(2)(b)**
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- **Allegation D – Abuse of Authority: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Derek Almeida drew his gun.**
- **Allegation E – Abuse of Authority: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sgt. Nicholas Van Dyke drew his gun.**
- **Allegation F – Abuse of Authority: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Michele Herbst drew her gun.**
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- **Allegation G – Abuse of Authority: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sgt. Nicholas Van Dyke supervised the frisk of § 87(2)(b)**
- **Allegation H – Abuse of Authority: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sgt. Nicholas Van Dyke supervised the search of § 87(2)(b)**
§ 87(2)(b)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- **Allegation I – Abuse of Authority: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn and inside the 83rd Precinct stationhouse, Sgt. Nicholas Van Dyke supervised the strip-search of § 87(2)(b)**
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- § 87(2)(g), § 87(4-b)
§ 87(2)(g)

- § 87(2)(g), § 87(4-b)

§ 87(2)(g)

§ 87(2)(g)

Additionally, the complaint was filed more than a month after the incident date.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a 6'3", 215 lb. black man with black hair and brown eyes. At the time of the incident, he was § 87(2)(b) § 87(2)(b)

CCRB Statements

§ 87(2)(b) made statements pertaining to this incident in filing his complaint with the CCRB call processing system on February 6, 2012 (encl. 7A-B), during a telephone statement on February 16, 2012 (encl. 8A), and during his in-person interview at the CCRB on February 23, 2012 (encl. 9A-F). § 87(2)(g)

§ 87(2)(b) could not recall the specific date of the incident, though he stated that it occurred in either late December of 2011 or early January of 2012, close to New Years' Day. However the investigation determined that the incident occurred on December 28, 2011, at approximately 1:40 p.m.

Shortly before this time, § 87(2)(b) left his apartment at § 87(2)(b) in Brooklyn to go to a bodega that was located two to three buildings down, at the corner of § 87(2)(b) and § 87(2)(b). After purchasing cigarettes at the bodega, § 87(2)(b) proceeded to the public housing building in which his friend § 87(2)(b) (last name unknown) lives, which is located at the corner of § 87(2)(b) and § 87(2)(b). (Although § 87(2)(b) could not recall this building's address, the investigation identified it as § 87(2)(b).

§ 87(2)(b) walked through the courtyard in back of § 87(2)(b) and attempted to shout up to the window of § 87(2)(b) apartment, which is located on the 5th Floor of the building. After shouting for § 87(2)(b) once, § 87(2)(b) took one step inside the building, so that his body was halfway in and halfway out, and yelled for § 87(2)(b) again. § 87(2)(b) did not answer. § 87(2)(b) consequently began to walk back toward his apartment, which is around the corner from § 87(2)(b) building. As § 87(2)(b) was walking down § 87(2)(b) between § 87(2)(b) and § 87(2)(b) an unmarked burgundy sedan pulled up approximately next to § 87(2)(b) (who was on the sidewalk), and three officers exited the vehicle. Although § 87(2)(b) stated during his CCRB interview that all three officers had their firearms drawn and pointed toward the ground, he stated during his detailed telephone statement on February 16, 2012 that only PO Almeida had his gun drawn, and explicitly denied that the other officers had their guns drawn as well.

§ 87(2)(b) described these officers as a uniformed Dominican man with black hair in a Caesar cut who was about 30 years old, 5'9" to 5'11" tall, and clean shaven, a uniformed white woman who was heavysset, about 5'6" tall, and about 30 to 37 years old, and a uniformed white

man who was about 5'7" to 5'8" tall and 39 to 40 years old. The CCRB respectively identified these officers as PO Derek Almeida, PO Michele Herbst and Sgt. Nicholas Van Dyke. Although he was uncertain at the time of his interview, § 87(2)(b) believed that PO Almeida exited the driver's seat of the vehicle. (At some point during the incident, § 87(2)(b) saw PO Almeida's name on his uniform. He could not recall it at the time of his interview, though he believed it may have been similar to "Almidia.")

PO Almeida said, "Freeze! You're the Bushwick robber!" § 87(2)(b) put his hands up in the air. § 87(2)(b) then told the officers that he had identification and that he was going to take it out. § 87(2)(b) then removed his identification from his back right pants pocket and showed it to PO Almeida. § 87(2)(b) then said, "I'm going to take my other hand and show you that I have nothing on me." § 87(2)(b) then used his left hand to pull out his left side pocket, followed by both of his front pants pockets. The officers allowed § 87(2)(b) to continue pulling out his pockets to show that there was nothing in them. PO Almeida then grabbed § 87(2)(b) hands, moved them behind his back and pushed him up against the officers' vehicle so that § 87(2)(b) was bent at the waist over the hood. To § 87(2)(b) the force used by PO Almeida to move him against the vehicle appeared to be designed to assert control and was "not extra hard." It did not cause any injuries.

PO Almeida ordered § 87(2)(b) to place his hands on the hood, and § 87(2)(b) complied. During his interview, § 87(2)(b) alleged that PO Almeida patted § 87(2)(b) front and back pants pockets, his coat pockets, his arms and his legs. However, during his detailed telephone statement on February 16, 2012, § 87(2)(b) made no mention of being frisked or searched prior to being placed under arrest.

PO Almeida then asked § 87(2)(b) where he was coming from. § 87(2)(b) stated that he was coming from "over there." He added that he had just gotten out of work and had gone to see if his friend was available to repay a monetary debt. PO Almeida ordered § 87(2)(b) to remove his sneakers, and § 87(2)(b) complied. PO Almeida searched § 87(2)(b) sneakers. PO Almeida then told § 87(2)(b) to remove his jacket, which he did. PO Almeida searched the jacket by placing his hands into the jacket's pockets. PO Almeida then told § 87(2)(b) to take off his sweater. § 87(2)(b) complied, and PO Almeida searched the sweater. PO Almeida then pulled § 87(2)(b) pants and underwear down beneath his buttocks. § 87(2)(b) began yelling, "How you searching my ass?" PO Almeida placed his bare fingers inside of § 87(2)(b) rectum. At some point, § 87(2)(b) was allowed to put his clothing back on. PO Almeida then handcuffed § 87(2)(b). The officers then transported § 87(2)(b) to the 83rd Precinct stationhouse.

At the stationhouse, PO Herbst vouchered § 87(2)(b) property. PO Almeida then took § 87(2)(b) to a holding cell that could not be seen from the other cells. PO Almeida ordered § 87(2)(b) to remove his clothing, and § 87(2)(b) complied. PO Almeida then had § 87(2)(b) lift his genitals, cough, squat, and spread his buttocks. PO Almeida did not touch § 87(2)(b) at this time. PO Almeida then left § 87(2)(b) in the holding cell, only to return shortly thereafter and inform § 87(2)(b) that he was being arrested for § 87(2)(b). § 87(2)(b) was then taken to Central Booking.

NYPD Statements:

Subject Officer: PO KELVIN PEREZ

- *PO Perez is a 5'6", 170 lb. Hispanic man with brown hair and brown eyes. He was § 87(2)(b) old at the time of the incident.*
- *On the date of the incident, PO Perez worked in plainclothes from 7 a.m. to 3:35 p.m. in an unmarked vehicle as an observation post officer for the 83rd Precinct SNEU team. He could not recall who his partner was.*
- *Although PO Perez was promoted to sergeant following the incident, he is herein referred to*

by his rank at the time of the incident.

Memo Book (encl. 10A-C)

At 1:54 p.m., § 87(2)(b) was stopped at the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn and arrested for § 87(2)(b).

Stop, Question and Frisk Report (encl. 11A-C)

The Stop, Question and Frisk report documenting the stop of § 87(2)(b) which was filled out by PO Perez, indicates that the following factors justified the stop of § 87(2)(b) that § 87(2)(b) entered and remained inside of a housing location without permission to do so; that § 87(2)(b) engaged in actions indicative of casing a victim or location; that the area has a high incidence of reported offense; that § 87(2)(b) provided evasive, false or inconsistent responses to officers' questions. This report also indicates that no frisk was conducted. Although the report lists that a search was conducted at some point, it lists the search basis as "arrest," indicating that the search that occurred was incident to the lawful arrest of § 87(2)(b).

Arrest Report (encl. 12A-C)

§ 87(2)(a) 160.50

CCRB Statement

PO Kelvin Perez was interviewed at the CCRB on March 20, 2013 (encl. 13A-C). On December 28, 2011, at approximately 1:54 p.m., PO Perez was assigned to an observation post outside of a drug-prone NYCHA building on § 87(2)(b) in Brooklyn. (During his interview, PO Perez initially stated that this location was "§ 87(2)(b)" however, the arrest report filled out by PO Perez revealed the address of this building to be § 87(2)(b) § 87(2)(g). He believed that he had a partner inside his vehicle, but did not recall who his partner was.

PO Perez's vehicle was parked near the corner of § 87(2)(b) and § 87(2)(b) parallel to the curb closest to the front of the building (shown on NYC.govMap to be the § 87(2)(b) entrance). He had a clear view of the inside hallway of the ground floor of the building through the glass window on the front entrance, and was able to see down the hallway to the rear courtyard entrance as well. He stated during his interview that, based on his prior observations of this location, he was aware that individuals regularly enter and exit the building through the rear door, which he believed had a broken locking mechanism. At the time of the incident, he stated that either the locking mechanism was broken or the rear door was propped open.

At this time, PO Perez observed an individual, identified by the investigation as § 87(2)(b) enter the rear entrance of the building (i.e., the entrance closest to § 87(2)(b)). Upon entering, § 87(2)(b) remained in the hallway for approximately three to four minutes, during which time § 87(2)(b) appeared to be wandering, or "just standing there." PO Perez was able to see § 87(2)(b) inside the building through the glass on the front door. He did not see anyone approach or speak to § 87(2)(b) § 87(2)(b) then stuck his head out of the front entrance of the building (i.e., the § 87(2)(b) entrance), for a few seconds, and looked in both directions before re-entering the building. After an additional two to three minutes inside, § 87(2)(b) exited the building. (Although PO Perez initially stated that § 87(2)(b) exited through the front door onto § 87(2)(b) he later indicated that § 87(2)(b) exited from the rear door of the building, in the direction of § 87(2)(b).

Upon observing § 87(2)(b) exit the building, PO Perez put a point-to-point radio transmission

out to the two apprehension automobiles on his SNEU team. This transmission included a description of § 87(2)(b) (the details of which PO Perez could not recall at the time of his interview) as well as an “instruct[ion...for] them to stop him” on suspicion of trespassing. He also provided the direction § 87(2)(b) was moving. As the building is on a corner, when § 87(2)(b) exited from through the rear, he began to approach the corner of § 87(2)(b) and § 87(2)(b). At no point did PO Perez suspect § 87(2)(b) of engaging in a drug transaction. PO Perez stated that there were no other factors contributing to his decision to have § 87(2)(b) stopped beyond his aforementioned behavior inside this building.

Within a minute, PO Perez received a radio transmission indicating that § 87(2)(b) had been stopped at the intersection of § 87(2)(b) and § 87(2)(b). PO Perez did not remember which officer made this transmission. PO Perez exited his vehicle and walked one block to the corner of § 87(2)(b) and § 87(2)(b). PO Perez recalled that the apprehension auto that stopped § 87(2)(b) was driving an unmarked vehicle; however, he could not remember the color or any other description of this vehicle, and could not recall which officers had effected the stop. However, PO Perez confirmed that, since Sgt. Van Dyke was assigned to the apprehension automobile at the time of the incident, it ultimately would have been his decision to stop § 87(2)(b). Though PO Perez initially stated that he did not see the initial approach and stop of § 87(2)(b) and that he could not hear any conversation between these officers and § 87(2)(b), he later stated that he had in fact seen § 87(2)(b) being stopped. He then stated again that he did not recall witnessing this stop being effected, and reiterated that he was notified of the stop after it had been effected. However, later in his interview, he again stated that he had a clear view of the entire stop of § 87(2)(b).

Upon observing § 87(2)(b) in the custody of the apprehension auto, PO Perez called one of the officers from this vehicle on his cell phone (he could not recall who). This officer asked PO Perez if he had seen § 87(2)(b) inside the building, as § 87(2)(b) was denying that he had been in the building at all. PO Perez confirmed that he had seen § 87(2)(b) inside the building and relayed what he had observed. It was PO Perez’s understanding that, at this point, § 87(2)(b) was under arrest for trespassing. PO Perez could not hear any conversation that was taking place between officers and § 87(2)(b) during the stop.

PO Perez did not remember if the other observation officer ever made radio contact with any other member of the SNEU team. § 87(2)(b) was then handcuffed, placed in a vehicle, and transported to the stationhouse. PO Perez walked back to his own vehicle and drove to the stationhouse separately. Upon arriving at the stationhouse, he remained in his car for some time, as § 87(2)(b) was the last arrest for the day. When he finally entered the stationhouse, PO Perez completed § 87(2)(b) arrest paperwork and returned home.

PO Perez denied that there was any point at which an officer said to § 87(2)(b) “Freeze! You’re the Bushwick robber.” He denied that any officer ever drew his or her firearm or forcibly pushed § 87(2)(b) against a vehicle. PO Perez did not frisk or search § 87(2)(b) and did not see any officer do this at the scene of his arrest. He did not see any officer pull down § 87(2)(b) pants and underwear or insert his or her finger into § 87(2)(b) rectum. He did not become aware of a strip-search being conducted inside the stationhouse. PO Perez added that he had no verbal or physical interaction with § 87(2)(b) throughout this incident. He stated that vehicle number § 87(2)(b) is a burgundy Ford Taurus.

Subject Officer: PO DEREK ALMEIDA

- *PO Almeida is a 5’9”, 180 lb. Hispanic man with brown hair and brown eyes. He was § 87(2)(b) years old at the time of the incident.*
- *On the date of the incident, PO Almeida worked in uniform with Sgt. Van Dyke and PO Herbst in unmarked vehicle § 87(2)(b) (a burgundy Ford Taurus) from 7 a.m. to 3:35 p.m. His*

vehicle was an apprehension auto.

Memo Book (encl. 14A-B)

PO Almeida did not make any memo book entries regarding this incident.

CCRB Statement

PO Almeida was interviewed at the CCRB on September 17, 2012 (encl. 15A-C). Although he initially stated that he had no recollection of the incident, his recollection was subsequently refreshed by a review of § 87(2)(b) arrest report during his interview. However, he did not recall who he was partnered with.

At approximately 1:40 p.m. on December 28, 2011, PO Almeida was parked in an unmarked car (identified by the CCRB as vehicle § 87(2)(b) on § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Brooklyn. PO Almeida was in the driver's seat, and the passenger side of his vehicle was facing the rear of the building that § 87(2)(b) would later be seen exiting. The vicinity of the location at which he was parked was drug prone. Additionally, at the time of the incident, there were a large number of burglaries in the area. PO Almeida was aware of this because he regularly reviews complaint reports in order to keep himself apprised of the crime activity in his precinct.

While parked on § 87(2)(b) PO Almeida received a radio transmission from another member of his team (identified by the CCRB as PO Perez, although PO Almeida could not recall who made the transmission). The transmission conveyed that an individual was suspected of trespassing because he had been observed entering a building. It also included a description of the subject, which PO Almeida could not recall. During his interview, PO Almeida initially stated that this was all that was specified in the transmission, though he later stated that the transmission also specified that § 87(2)(b) had been seen exiting the building. A short time after receiving the transmission, PO Almeida looked through the passenger's side window of his vehicle and observed § 87(2)(b) exit one of the nearby buildings, located about ten to fifteen feet away from PO Almeida's position, and begin to walk in the general direction of PO Almeida's car. At the time of his interview, although PO Almeida could not recall the description that was provided over the radio, he did recall that § 87(2)(b) fit it.

PO Almeida then pulled his car up next to § 87(2)(b). He asked § 87(2)(b) to stop, though he did not recall the exact phrasing of this request. He then exited his car and approached § 87(2)(b) (PO Almeida did not recall if his partners exited the vehicle as well, or if they spoke to § 87(2)(b) at any point during the incident.) Upon approaching § 87(2)(b) PO Almeida asked him where he was coming from, where he lived, and for his date of birth and address. § 87(2)(b) answered these questions. PO Almeida could not recall where § 87(2)(b) said he was coming from, though he recalled that § 87(2)(b) denied being in "the building." However, § 87(2)(b) did say where he lived. Although PO Almeida could not recall § 87(2)(b) specific responses at the time of his interview, he recalled that the address provided by § 87(2)(b) was not the same as the building he had just exited. At some point, PO Almeida also requested § 87(2)(b) identification, which § 87(2)(b) provided.

PO Almeida then verified with the rest of the team that § 87(2)(b) did in fact fit the description from the transmission, though he did not recall how he did this or whom he verified the description with. Once the description was verified, PO Almeida handcuffed § 87(2)(b). At the time of his interview, he did not recall if the observation officer arrived on scene to identify § 87(2)(b) visually, or rather simply confirmed the description over the radio. He did not recall any other officers interacting with § 87(2)(b) before he was placed under arrest.

PO Almeida did not recall if any of the officers frisked or searched § 87(2)(b) before he was placed under arrest, though he added that, as a matter of protocol, all individuals who are arrested are searched. He did not recall any officers strip-searching § 87(2)(b) on scene. Although PO

Almeida could not recall when Sgt. Van Dyke arrived on scene, he recalled that the sergeant verified § 87(2)(b) arrest some time after he was handcuffed. None of the officers involved in § 87(2)(b) arrest drew their firearms at any time.

PO Almeida then transported § 87(2)(b) to the 83rd Precinct stationhouse for processing. He did not recall any further interactions with § 87(2)(b) at the stationhouse, though he did not specifically recall parting company with § 87(2)(b) either. He never became aware of a strip-search being conducted at any time. PO Almeida also stated that a command log notation indicating that a “debriefing” has been conducted merely indicates that the sergeant spoke with a prisoner at some point. PO Almeida never had any reason to believe that § 87(2)(b) was concealing contraband on his person, or if any officer ever conveyed any reason to believe this.

Subject Officer: SGT. NICHOLAS VAN DYKE

- *Sgt. Van Dyke is a 5’8”, 190 lb. white man with brown hair and brown eyes. He was § 87(2)(b) years old at the time of the incident.*
- *On the date of the incident, Sgt. Van Dyke worked in uniform from 6:55 a.m. to 3:52 p.m. as the 83rd Precinct SNEU supervisor in an unmarked burgundy Ford Taurus with PO Almeida and PO Herbst. His vehicle was an apprehension auto.*
- *Although Sgt. Van Dyke was promoted to lieutenant following the incident, he is herein referred to by his rank at the time of the incident.*

Memo Book (encl. 16A-B)

At 1:55 p.m., Sgt. Van Dyke noted that § 87(2)(b) was arrested at the intersection of § 87(2)(b) and § 87(2)(b) for § 87(2)(a) 160.50.

CCRB Statement

Sgt. Van Dyke was interviewed at the CCRB on February 7, 2013 (encl. 17A-B). At the time of his interview, Sgt. Van Dyke had no recollection of the incident beyond recalling that an individual had been arrested for § 87(2)(a) 160.50. When presented with § 87(2)(b) CCRB photo, Sgt. Van Dyke stated that he did not recognize the individual in the photo. He did not recall the incident even after numerous details from the incident were provided to him in an attempt to refresh his recollection.

During his interview, Sgt. Van Dyke examined the command log entry regarding § 87(2)(b) arrest and confirmed that it was his handwriting. Although he could not recall the incident, he asserted that, based on the fact that the command log entry in question did not include mention of a strip search, he believed that no strip search had taken place.

Subject Officer: PO MICHELE HERBST

- *PO Herbst is a 5’4”, 150 lb. white woman with brown hair and brown eyes. She was § 87(2)(b) years old at the time of the incident.*
- *On the date of the incident, PO Herbst worked in uniform from 7 a.m. to 4:05 p.m. in an unmarked burgundy Ford Taurus with PO Almeida and Sgt. Van Dyke. Her vehicle was an apprehension auto.*

Memo Book (encl. 18A-B)

PO Herbst did not make any memo book entries regarding this incident.

CCRB Statement

PO Herbst was interviewed at the CCRB on February 5, 2013 (encl. 19A-B). At the time of her interview, she did not recall the incident, even after details from the incident were provided to

her in an attempt to refresh her recollection. When presented with § 87(2)(b) CCRB photo, PO Herbst stated that she did not recognize the individual in the photo.

Witness Officer: PO DILSON ABREU

- *PO Abreu is a 5'9", 215 lb. white man with salt and pepper hair and brown eyes. He was § 87(2)(b) years old at the time of the incident.*
- *PO Abreu worked from 7 a.m. to 3:35 p.m. in an unmarked vehicle. He could not recall if he was in uniform or plainclothes or what his role on the SNEU team was.*

Memo Book (encl. 20A-B)

PO Abreu did not make any memo book entries regarding this incident. He did not have his vehicle number noted in his memo book.

CCRB Statement

PO Abreu was interviewed at the CCRB on April 19, 2013 (encl. 21A-C). At the time of his interview, he did not recall the incident, even after details from the incident were provided to him in an attempt to refresh his recollection. When presented with § 87(2)(b) CCRB photo, PO Abreu stated that he did not recognize the individual in the photo.

PO Abreu stated that he has been at the 83 Precinct for the duration of his seven year SNEU career. He stated that he is familiar with the vicinity of § 87(2)(b). However, when asked if he was familiar with any kind of activity that takes place in this vicinity, PO Abreu stated that there is drug activity "everywhere in Bushwick." PO Abreu further stated that "everywhere in Bushwick, you could find any type of drug."

During his interview, PO Abreu was shown the 83rd Precinct roll call from the date of the incident, and his attention was called to the fact that every officer except for himself and PO Perez had their vehicle assignments noted. PO Abreu stated that, based on this roll call, he and PO Perez would "probably" have been assigned to the same vehicle, and that the only circumstance under which they would not have been would be if the officers' vehicle assignments had been switched by a supervisor. Additionally, he stated that all three SNEU vehicles would have been operational.

Witness Officer: PO SHANE MAYNARD

- *PO Maynard is a 6'0", 185 lb. black man with black hair and brown eyes. He was § 87(2)(b) old at the time of the incident.*
- *On the date of the incident, PO Maynard worked in uniform with PO Ludemann in an unmarked vehicle from 7 a.m. to 3:35 p.m.*

Memo Book (encl. 22A-C)

PO Maynard did not make any memo book entries regarding this incident.

CCRB Statement

PO Maynard was interviewed at the CCRB on April 12, 2013 (encl. 23A-C). At the time of his interview, he did not recall the incident, even after details from the incident were provided to him in an attempt to refresh his recollection. When presented with § 87(2)(b) CCRB photo, PO Maynard stated that he did not recognize the individual in the photo.

In regards to his SNEU team making stops and arrests for trespassing, PO Maynard stated, "Usually, trespassing... it's a tool, because, you know, when you're doing SNEU, and it's a location, alright it's housing, so if somebody doesn't live there, then, you know...they could get

arrested. So that's probably why." He confirmed that people suspected of trespassing may be "picked up" for "debrief[ing]," because "it's all about intel," as the SNEU team's interest is in narcotics.

Witness Officer: PO DANIEL LUDEMANN

- *PO Ludemann is a 5'10", 240 lb. white man with brown hair and brown eyes. He was § 87(2)(b) years old at the time of the incident.*
- *On the date of the incident, PO Ludemann worked in uniform with PO Maynard in an unmarked vehicle from 7 a.m. to 3:35 p.m.*

Memo Book (encl. 24A-B)

PO Ludemann did not have any memo book entries regarding this incident. His memo book notes that, at 2:05 p.m., PO Maynard arrested a female at the corner of § 87(2)(b) and § 87(2)(b) (PO Ludemann stated that this location is about two blocks away from the incident location.)

CCRB Statement

PO Maynard was interviewed at the CCRB on April 19, 2013 (encl. 23A-C). At the time of his interview, he did not recall the incident, even after details from the incident were provided to him in an attempt to refresh his recollection. When presented with § 87(2)(b) CCRB photo, PO Ludemann stated that he did not recognize the individual in the photo.

NYPD Documents

83rd Precinct Tour 2 Roll Call (encl. 27A-N)

Sgt. Van Dyke, PO Herbst and PO Almeida were all assigned to vehicle § 87(2)(b) PO Maynard and PO Ludemann were assigned to vehicle § 87(2)(b) The only remaining SNEU officers, PO Abreu and PO Perez, do not have vehicle assignments noted.

Command Log (encl. 28A)

§ 87(2)(b) arrived at the stationhouse at about 2 p.m. There is no indication that he was strip-searched. The log notes that § 87(2)(b) was debriefed by Sgt. Van Dyke with negative results.

Request for Relevant SPRINT Reports or Complaint Reports (encl. 35A)

There is no record of any SPRINT or complaint report associated with this incident.

Arrest for Incident and Disposition (encl. 30A)

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Status of Civil Proceedings (encl. 29A)

- § 87(2)(b) has not filed a Notice of Claim with the City of New York with regard to this incident as of June 25, 2012, three months past the filing deadline.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 5A).

Subject Officers' CCRB Histories

- PO Derek Almeida has been a member of the service for five years and there are two substantiated CCRB allegations against him (encl. 4A-B):
 - In case 201115628, allegations that PO Almeida improperly searched a person and a vehicle were substantiated and charges were recommended for both allegations. There is no record of any NYPD disposition.
- PO Michele Herbst has been a member of the service for 10 years and there are four substantiated CCRB allegations against her (encl. 3A-B):
 - In case 200407799, allegations that PO Herbst stopped, threatened to arrest and spoke rudely to individuals were substantiated, as was an allegation that she disclosed official Department business without authorization. Charges were recommended for all allegations. She received a command discipline for the improper stop.
- Sgt. Nicholas Van Dyke has been a member of the service for 11 years and there are two substantiated CCRB allegations against him (encl. 2A-B):
 - In case 201115628, allegations that Sgt. Van Dyke supervised an improper search of a person and an improper vehicle search were substantiated and charges were recommended for both allegations. There is no record of any NYPD disposition.

Conclusion

Identification of Subject Officers

- § 87(2)(b) stated that, as he was walking down the street, a vehicle with three officers inside – described by § 87(2)(b) as a uniformed Hispanic man, a uniformed white woman, and a uniformed white man – pulled up beside him, and that the Hispanic man verbally stopped him in the presence of the other officers (Allegations A and B). He stated that it was this same man who questioned him regarding where he was coming from and handcuffed him. NYPD documentation indicates that § 87(2)(b) was stopped by the 83rd Precinct SNEU team and that only one of this team's vehicles had three officers inside: Sgt. Nicholas Van Dyke, PO Derek Almeida, and PO Michele Herbst, who was the only female member of the team. PO Almeida acknowledged that it was he who asked § 87(2)(b) to stop, questioned him about where he was coming from and handcuffed him. He was the only Hispanic male officer in a three person vehicle at the time of the incident. Additionally, § 87(2)(b) stated that, at some point during the incident, he saw the Hispanic male officer's name on his name plate, and recalled that this may have been similar to "Almidia." PO Almeida is the only officer on the SNEU team with a similar sounding name. § 87(2)(g)
§ 87(2)(b) Furthermore, PO Almeida's testimony indicates that he initiated contact with § 87(2)(b) by telling him to stop while PO Almeida was still inside his vehicle with Sgt. Van Dyke. § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- § 87(2)(b) alleged that all three officers in the aforementioned vehicle drew their firearms (Allegations D, E and F). § 87(2)(g)
§ 87(2)(b)

- § 87(2)(b) alleged that PO Almeida frisked (Allegation G) and searched him (Allegation H) in Sgt. Van Dyke's presence prior to the point at which § 87(2)(b) was placed under arrest. § 87(2)(g)
- § 87(2)(b) alleged that he was strip-searched by PO Almeida at the scene of his arrest (Allegation I) and inside the 83rd Precinct stationhouse (Allegation I continued). § 87(2)(g)
- § 87(2)(g), § 87(4-b)

Investigative Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

Allegation A – Abuse of Authority: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Kelvin Perez ordered the stop of § 87(2)(b)
Allegation B – Abuse of Authority: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Derek Almeida stopped § 87(2)(b)
Allegation C – Abuse of Authority: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sgt. Nicholas Van Dyke supervised the stop of § 87(2)(b)

That § 87(2)(b) was stopped by PO Almeida is not in dispute. This stop was documented in a Stop, Question and Frisk report that was filled out by PO Perez. Additionally, PO Perez's statement indicates that, before § 87(2)(b) was arrested, an officer from PO Almeida's vehicle notified PO Perez via radio that § 87(2)(b) had been stopped in response to PO Perez's instructions to stop him. PO Almeida's statement identifies him as the officer who spoke with PO Perez over the radio at this time.

Regarding the circumstances surrounding the stop of § 87(2)(b) PO Almeida stated that he initially approached § 87(2)(b) because an officer (identified by the CCRB as PO Perez) notified the rest of the SNEU team via radio that § 87(2)(b) had been seen entering and exiting a NYCHA building, and was therefore suspected of trespassing. PO Almeida denied that he received any additional information about § 87(2)(b) behavior at this time. According to PO Almeida, when PO Almeida saw § 87(2)(b) exiting the rear of § 87(2)(b) PO Almeida approached § 87(2)(b) and began to question him, at which time § 87(2)(b) made a false statement by denying that he had been inside § 87(2)(b) § 87(2)(b) did not make any false statements before PO Almeida began to question him. § 87(2)(g)

The observation of innocuous behavior such as entering and exiting a NYCHA building

cannot provide an officer with an objective credible reason for believing that an individual is or was trespassing, even if the building is in a high crime area. People v. Almonte, 927 N.Y.S.2d 818 (2011 – Sup. Ct. Bronx County) (encl. 1A-B). Furthermore, although false statements can provide founded suspicion, they cannot by themselves provide reasonable suspicion of criminality. People v. Rodriguez, 915 N.Y.S.2d 551 (2011 – 3rd Dept.) (encl. 1F-G).

§ 87(2)(g)

Allegation D – Abuse of Authority: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Derek Almeida drew his gun.

Allegation E – Abuse of Authority: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sgt. Nicholas Van Dyke drew his gun.

Allegation F – Abuse of Authority: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Michele Herbst drew her gun.

During his in-person statement at the CCRB, § 87(2)(b) alleged that, as the officers were initially exiting their vehicle, PO Almeida, Sgt. Van Dyke, and PO Herbst all drew their firearms. However, during his telephone statement on February 16, 2012, § 87(2)(b) explicitly denied that either Sgt. Van Dyke or PO Herbst drew their firearms. Although neither PO Herbst nor Sgt. Van Dyke recalled the incident, PO Almeida expressly denied that any of the officers drew their firearms at any time.

§ 87(2)(g)

Allegation G – Abuse of Authority: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sgt. Nicholas Van Dyke supervised the frisk of § 87(2)(b).

Allegation H – Abuse of Authority: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sgt. Nicholas Van Dyke supervised the search of § 87(2)(b).

During his in-person statement at the CCRB, § 87(2)(b) alleged that PO Almeida frisked and searched him before he was placed under arrest. PO Almeida did not recall this occurring, and neither Sgt. Van Dyke nor PO Herbst recalled the incident. PO Perez’s testimony indicates that he may not have been present at the time of the frisk and search in question. None of the other officers recalled the incident, and indeed may not have been present for this phase of it. The Stop, Question and Frisk Report filled out by PO Almeida notes that a frisk was not conducted. Although the Stop, Question and Frisk Report notes that a search was conducted at some point, it

lists the search basis as “arrest,” indicating that the search that occurred was incident to the lawful arrest of § 87(2)(b)

§ 87(2)(g)

During his detailed telephone statement on February 16, 2012, § 87(2)(b) made no mention of being frisked or searched. Additionally, according to the chronology of events provided by § 87(2)(b) he voluntarily emptied all of his pockets in front of the officers prior to the point at which he was allegedly frisked and searched. § 87(2)(g)

Allegation I – Abuse of Authority: In the vicinity of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn and inside the 83rd Precinct stationhouse, Sgt. Nicholas Van Dyke supervised the strip-search of § 87(2)(b)

§ 87(2)(b) alleged that he was strip-searched both at the scene of his arrest and inside the 83rd Precinct stationhouse. Sgt. Van Dyke did not recall the incident, though he noted that he did not believe a strip-search was conducted because, had this occurred, he would have noted it in the command log next to § 87(2)(b) arrest entry. The command log does not contain any such notation. All other officers either denied that this occurred or did not recall the incident.

§ 87(2)(g)

§ 87(4-b) § 87(2)(g)

Team: _____

:

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____

Title/Signature

Print

Date